

STATE OF NEW YORK

6288--A

2025-2026 Regular Sessions

IN SENATE

March 7, 2025

Introduced by Sen. LIU -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to requiring general hospitals to provide language assistance services

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public health law is amended by adding a new section
2 2803-bb to read as follows:

3 § 2803-bb. Provision of language assistance. Every general hospital
4 shall develop a language assistance program to ensure meaningful access
5 to the general hospital's services and reasonable accommodation for all
6 patients who require language assistance. Program requirements shall
7 include:

8 1. the designation of a language assistance coordinator who shall
9 report to general hospital administration and who shall provide over-
10 sight for the provision of language assistance services;

11 2. policies and procedures that ensure timely identification and ongoing
12 access for patients in need of language assistance services;

13 3. the development of materials that will be made available for
14 patients and potential patients that summarize the process and method to
15 access free language assistance services;

16 4. ongoing education and training for administrative, clinical and
17 other employees with direct patient care contact regarding the importance
18 of culturally and linguistically competent service delivery and
19 how to access the general hospital's language assistance services on
20 behalf of patients;

21 5. signage, as designated by the department, regarding the availability
22 of free language assistance services in public entry locations and
23 other public locations;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD01392-05-5

1 6. identification of language of preference and language needs of each
2 patient upon initial visit to the general hospital;

3 7. documentation in the medical record of the patient's language of
4 preference, language needs, and the acceptance or refusal of language
5 assistance services;

6 8. a provision that family members, friends, or non-general hospital
7 personnel shall not act as interpreters, unless:

8 (a) the patient agrees to their use;

9 (b) free interpreter services have been offered by the general hospi-
10 tal and refused; and

11 (c) issues of age, competency, confidentiality, or conflicts of inter-
12 est are taken into account. Any individual acting as an interpreter
13 should be sixteen years of age or older; individuals younger than
14 sixteen years of age shall only be used in emergency circumstances and
15 their use documented in the medical record;

16 9. management of a resource of skilled interpreters and persons
17 skilled in communicating with vision and/or hearing-impaired individ-
18 uals. Interpreters and persons skilled in communicating with vision
19 and/or hearing-impaired individuals shall be available to patients in
20 the inpatient and outpatient setting within twenty minutes and to
21 patients in the emergency service within a reasonable period of time
22 from a request to general hospital administration by the patient, the
23 patient's family or representative or the provider of medical care. The
24 commissioner may approve reasonable time periods to the provisions of
25 this subdivision regarding interpreters and persons skilled in communi-
26 cating with vision and/or hearing-impaired individuals for patients of
27 rural general hospitals which:

28 (a) demonstrate that they have taken and are continuing to take all
29 reasonable steps to fulfill these requirements but are not able to
30 fulfill such requirements immediately for reasons beyond the general
31 hospital's control; and

32 (b) have developed and implemented effective interim plans addressing
33 the communications needs of individuals in the general hospital service
34 area;

35 10. an annual needs assessment utilizing demographic information
36 available from the United States bureau of the census, general hospital
37 administrative data, school system data, or other sources, that shall
38 identify limited English-speaking groups comprising more than one
39 percent of the total general hospital service area population.
40 Translations/transcriptions of significant general hospital forms and
41 instructions shall be regularly available for the languages identified
42 by the needs assessment; and

43 11. reasonable accommodation for a family member or patient's repre-
44 sentative to be present to assist with the communication assistance
45 needs for patients with mental and developmental disabilities.

46 § 2. This act shall take effect immediately.